

UNIT 02

PUBLIC VERSUS PRIVATE MORALITY

Welcome to PD9: Ethical Decision Making!

This downloadable version of Unit 02 contains edited content. To get the full experience of this course and all of its content (including additional interactive content and assignments), you are encouraged to engage with the course through LEARN.

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UNIT 02 OBJECTIVES

- Distinguish between private morality and public morality
- Evaluate your personal values against organizational expectations when making ethical decisions
- Take the interests of the organization, public expectations, and legal factors into consideration when making ethical decisions

UNIT 02 ASSESSMENT

There is an assessment in this unit. Please complete the assessment in LEARN.

THE BIG IDEA

DIRTY HANDS

There are going to be situations when your supervisor will ask you to do something you don't agree with. In those situations, you will have to decide to adhere to your personal morals or act in the best interests of your organization. This unit will help you navigate these kinds of situations effectively.

INSTRUCTOR'S LECTURE

STIR THE POT

Imagine you work for an organization that has come under heavy public scrutiny. To counter the negative publicity of your organization, your organization has decided to issue a press release. The goal is to assuage public opinion. The day before your press release, your supervisor walks into your cubicle and hands you a dataset and a list of conclusions. Your job, they tell you, is to find the evidence in the data to support the claims they want to make in the press release.

How would this request make you feel? Well, it should make you feel uncomfortable. Cherry-picking data to support your conclusion is, at best, intellectually dishonest. Depending on the context, it may be unethical as well; you are potentially deceiving your audience. What would you do? Would you set aside your personal morality - your personal convictions - and do what your supervisor requested, or would you resist the request in whatever way that you could?

PUBLIC VERSUS PRIVATE MORALITY

To what extent should we allow our personal ethics to influence the decisions we make at work? The best answer to this question is, of course, to say: 'well, that depends'. There will be times when it is okay for our personal ethics to influence the decisions we make at work. Other times, we must set aside our personal convictions and act in the best interest of the organization we represent. The distinction to be made is between private morality and public morality.

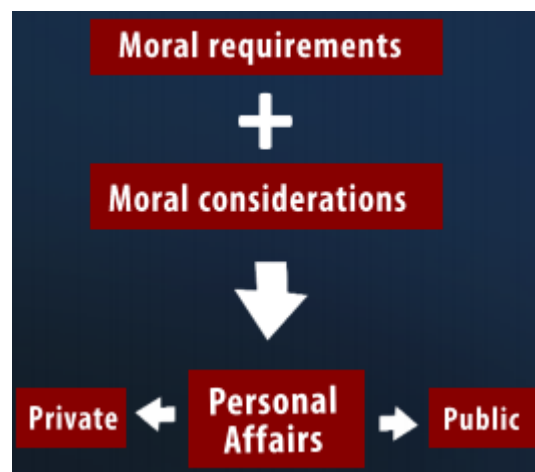


Figure 1: PD9, Unit 02, Slide 5

PRIVATE MORALITY

PRIVATE MORALITY CONSISTS OF THE MORAL REQUIREMENTS AND MORAL CONSIDERATIONS PRESENT IN YOUR PERSONAL AFFAIRS, IN BOTH PUBLIC AND PRIVATE SPHERES.

Our private morality guides us in our personal affairs, both in public and private spheres. For example, when you go to a restaurant, you must choose whether to be rude or nice to your server. The moral requirements of your private morality might dictate that you be considerate and treat your server with dignity and the respect they deserve.

Consider another example of private morality: when you're by yourself in the park and have an empty coffee cup that you want to get rid of, you must make a choice. Do you litter, or do you walk over and throw your cup in the garbage can? The moral requirements of your private morality might dictate that you throw the cup in the garbage can. Private morality consists of the moral requirements and moral considerations present in your personal affairs, in both public and private spheres.



Figure 2: PD9, Unit 02, Slide 7

PUBLIC MORALITY

PUBLIC MORALITY CONSISTS OF THE MORAL REQUIREMENTS AND MORAL CONSIDERATIONS PRESENT WHEN YOU ACT ON BEHALF OF ANOTHER PERSON, OR AN ORGANIZATION.

Now, what is public morality? Consider the following example: I, Dr. Greg Andres, am an employee of the University of Waterloo. The University has set out expectations for their employees, and as an employee, I have an obligation to live up to those expectations when I am representing the university in any official capacity. So, when I am in the lecture hall, I must behave in a certain way. When I am in my office, I must behave in a certain way. Even when I am off campus at a conference, I must behave in a way that is consistent with university policies.

Public morality consists of the moral requirements and moral considerations present when you act on behalf of another person, or an organization.

To what extent may we allow our private morality to influence the decisions we make at work?

- a) Fully
- b) It depends
- c) Not at all

When you work for an organization, you represent that organization; you are an agent of that organization. As an agent of an organization, the organization has certain claims over you and can rightfully expect you to behave in certain ways. The organization that you work for can rightfully expect

you to act in such a way as to promote the goals of the organization, but that doesn't mean that you have to do everything your organization tells you to do. There are clear-cut cases where you should allow your personal ethical convictions to influence the decisions you make in the workplace.

THE WELLS FARGO CASE

As [CNN Money reports](#), “Wells Fargo ... employees secretly created millions of unauthorized bank and credit card accounts — without their customers knowing it ...”

Why would the Wells Fargo employees create millions of unauthorized accounts? Well, the fees from the accounts generated revenue for the bank, and the employees themselves were able to boost their sales and make more money as well. What the Wells Fargo employees did was clearly wrong, both legally and ethically: you cannot create an account for someone without their informed consent, but clearly, many employees went along with this unethical scheme: 5300 employees were fired for their unethical

actions. Now why so many people went along with the scheme for so long is an interesting question. Perhaps the lesson is that we all have a price, and when the price is right, we will yield to the temptation to act unethically. Don't think for a moment that doing the right this is always the easiest thing to do.

The Wells Fargo example is a clear case where an employee would be justified in letting their private morality influence their decisions at work.

THE KIM DAVIS CASE

In contrast, here is an example where an employee was not justified in letting their private morality influence their decisions at work. Consider the case of Kim Davis, the Kentucky county clerk who refused to issue marriage licenses to same-sex couples, defying a federal court order. She did so, claiming she was acting under divine authority. As a county clerk, Davis was a representative of the government. Her duty was to uphold the laws of Kentucky and the federal government. She even acknowledged this in her acceptance speech after being elected to office. The Morehead News quotes Davis as saying, “I promise to each and every one that I will be the very best working clerk that I can be and will be a good steward of their tax dollars and follow the statutes of this office to the letter.” That was until the United States Supreme Court ruled that same-sex couples have a fundamental right to marry, and all county clerks were then required to issue marriage licences to same-sex couples. At this point Davis let her private morality influence the decisions she made as a representative of the municipal government, which she was not justified in doing.

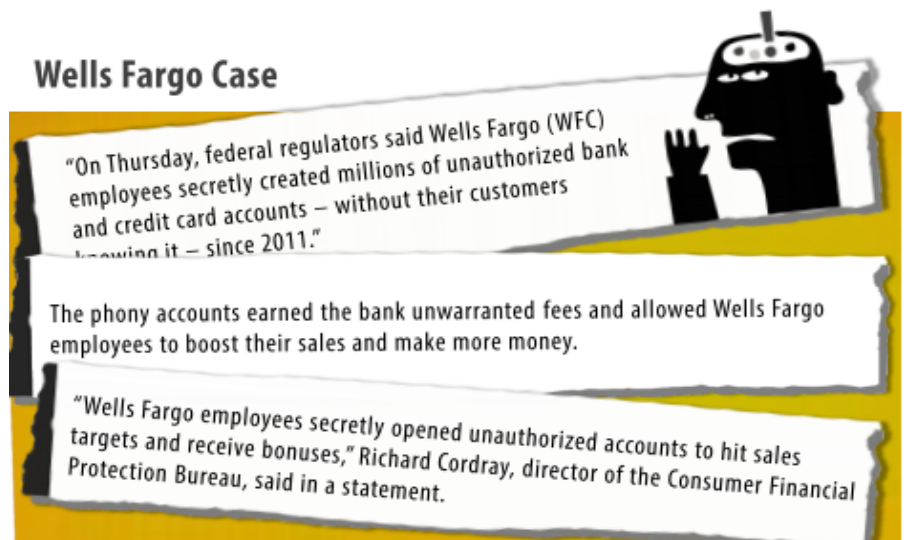


Figure 1: PD9, Unit 02, Slide 10

As a county clerk, Kim Davis had a legal and moral obligation to uphold **all** the laws of the state, not just the ones she agreed with. So, when she refused to issue same sex marriage licenses, Davis let her personal beliefs about marriage interfere with her decision-making. This was not justified, and she was jailed for contempt (The Associated Press, 2015). Eight years later she was fined and had to pay \$260,000 to the attorneys for one of the couples she refused to give a marriage licence to (Associated Press, 2024).

Framing this in a Canadian setting—specifically in the context of Ontario, decisions made in the workplace must be consistent with the *Ontario Human Rights Code*, which prohibits actions that discriminate against people based on protected grounds such as gender identity and sexual orientation in a protected social area like employment. (Note that there are 14 protected grounds in 5 protected social areas. You can read more about this in the extra resources section of this unit).

The broad takeaway is this. When you work for an organization—a government agency, a corporation, an NGO, a charity, or what not— you will be expected to act in the best interests of that organization. At some point, you will need to set your private morality aside. At some point you will need to say to yourself *my private moral convictions are not justified here*, and you will need to act consistently with the values of the organization that you work for.

BETWEEN RIGHT, RIGHT, AND RIGHT

Consider a case where a decision has to be made between right and right. Imagine you work for a small start-up that has just had its first profitable year. A decision has to be made about what to do with the profits. Three options are tabled:

1. Put the money back into the start-up itself - increasing wages, benefits - and make capital investments;
2. Put the money into dividends for the investors, or;
3. Give the money to charity.

All three options are both legally and ethically permissible, and there are good prudential and ethical reasons for each option. Imagine the decision goes to a vote.

Which option would you vote for if you had a say in the matter?

- a) Put the money back into the company itself.
- b) Put the money into dividends for the investors.
- c) Give the money to charity.



Figure 2: PD9 Infographic

There is nothing wrong with any of the three options. Again, there are very good prudential and ethical reasons to go along with any one of them. The choice is between right, right and right. Imagine the result of the vote is that the money should be put into dividends for the investors. However, you strongly disagree with this outcome. You think the money should go towards improving employees' compensation packages, or at the very least, the money should go to charities. It is possible that some of the ethical decisions made by the group will conflict with what an individual in the group would do. Because the start-up is so small, you have been asked to do something that you think shouldn't be done. Would you set aside your personal convictions and do what you are instructed to do, or would you resist in whichever way that you could?

Would you set aside your personal convictions and do what you are instructed to do? Or would you resist in whatever way that you could?

- a) Follow instructions
- b) Neutral
- c) Resist

THERE WILL BE TIMES WHEN IT IS OKAY FOR OUR PERSONAL ETHICS TO INFLUENCE THE DECISIONS WE MAKE AT WORK. OTHER TIMES, WE MUST SET ASIDE OUR PERSONAL CONVICTIONS AND ACT IN THE BEST INTEREST OF THE ORGANIZATION WE REPRESENT.

Once again, the distinction to be made is between private morality and public morality. Our private morality guides us in our personal affairs, both in public and private spheres. Public morality consists of the moral requirements and moral considerations present when we act on behalf of another person, or an organization. The question we have been wrestling with is: to what extent should we allow our personal ethics to influence the decisions we make at work? That depends. There will be times when it is okay for our personal ethics to influence the decisions we make at work. Other times, we must set aside our personal convictions and act in the best interest of the organization we represent.

HOW DO YOU DECIDE?

So how do we know what to do? When should we stand up for what we believe and when should we set aside our personal convictions and act in the best interest of our employer? Here is a quick decision-making model.

Is what I've been asked to do illegal and/or discriminatory? (Here we are talking about the *Ontario Human Rights Code* or an equivalent code in a different jurisdiction.)

If yes, then think long and hard about what you are willing to sacrifice personally for your organization. If you are caught doing something illegal or discriminatory, unemployment will be the least of your



Figure 5: PD9, Unit 02, Slide 19

concerns. If no, then ask yourself: Is this an ethical issue? If not, then act in the best interest of the organization you work for. If yes, then list the ethical issues. After that, ask: are any of the ethical issues that I've identified things that are prohibited in the code of ethics of the profession or organization? If yes, then think long and hard again about what you are willing to sacrifice personally for your organization. If you are caught doing something unethical, you might lose your job or be censured by a professional body or association. If no, then your employer can rightly expect you to act in their best interests. If you refuse, there is a good chance that you are letting your private morality interfere with the decisions you make at work, and there's a good chance that you will face disciplinary actions as a consequence.

Using the following decision-making model may help.

If you think that there is an ethical issue at play, and if you think the issue is not addressed by any organizational or professional code of ethics, the best thing to do is to stand back and ask yourself the following two questions:

1. What values and principles do you stand for?
2. Why do your values and principles prohibit you from fulfilling your obligations to the organization for which you work?

If you allow your private morality to influence the decisions you make at work without a clear answer to either of these questions, you run the risk of not fulfilling your obligations to the organization that you represent, and that doesn't speak well of you professionally.

WHAT'S THE POINT?

When you work for an organization, you represent that organization, and the organization can reasonably expect certain things from you. For example, an organization can reasonably expect you to work in its best interests. However, an organization cannot reasonably expect you to break the law or to contravene an enforceable code of ethics. In such cases, you are completely justified in allowing your private morality to influence the decisions that you make at work.

When there is no clear contravention of an enforceable code of ethics, you must ask yourself what your obligations are to your organization and what you are willing to sacrifice personally for your organization. Sometimes you will have to make the hard choice, set aside your private morality, and act in the best interests of your organization - even if this requires you to go against your private morality. Just remember: making the right choice - doing that which is ethical - is rarely the easy choice.

ADDITIONAL RESOURCES

5,300 Wells Fargo employees fired over 2 million phony accounts:

<http://money.cnn.com/2016/09/08/investing/wells-fargo-created-phony-accounts-bank-fees/>

An example of data being intentionally “spun” to support an argument:

<http://higheredstrategy.com/statistical-deceptions-on-student-debt/>

Wells Fargo isn’t the only financial institution where its employees have felt pressure to lie and trick customers: <http://www.cbc.ca/news/business/banks-upselling-go-public-1.4023575>

There will be times when you are not justified in letting your private morality influence your decisions at work. <https://www.cp24.com/world/kentucky-clerk-ordered-to-jail-for-refusing-to-grant-marriage-licenses-to-gay-couples-1.2546292> (CP24)

In Ontario, decisions made in the workplace must be consistent with *Ontario Human Rights Code*, which prohibits actions that discriminate against people based on protected grounds in protected social areas.

Is your job hindering your moral compass? An op-ed piece echoes the decisions described in this unit: <http://www.bordermail.com.au/story/4797312/is-your-job-hindering-your-moral-compass/>

REFERENCES

The Associated Press (2015, September 3). U.S. county clerk Kim Davis jailed for contempt over same-sex marriage licences. *CBC News*. Retrieved from <https://www.cbc.ca/news/world/u-s-county-clerk-kim-davis-jailed-for-contempt-over-same-sex-marriage-licences-1.3214735>

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